

		hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service.
7	Mal v. Bank of The West 2022-01262144	<u>Status Conference in Case No. 2022-01262144</u> The parties' previously-filed joint status conference statement (ROA 97) states that plaintiff will seek dismissal of this case upon final approval of the class action and PAGA settlement in Case No. 2022-01251706. In light of the court's concurrently-issued order in Case No. 2022-01251706, the June 25, 2026 status conference in Case No. 2022-01262144 is vacated. An Order to Show Cause re Dismissal is scheduled for <u>August 6, 2026 at 9:00 a.m.</u> in Department CX105. Plaintiff is ordered to appear. Failure to appear will result in dismissal of the entire action. If the entire action is dismissed before August 6, 2026, no appearances are required. Clerk to give notice.
8	Sandoval, et al. v. Heritage Plastering, Inc. 2024-01376278	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for approval of a \$390,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. In the March 19, 2026 order (ROA 141), the court stated that each plaintiff should state his or her anticipated total amount to be received (including for any individual claims and excluding any enhancement payment). Each plaintiff states his or her anticipated individual PAGA payment, and each states that he or she has entered into an individual settlement. Sandoval Decl. (ROA 155) ¶¶ 4, 5; Aguirre Decl. (ROA 151) ¶¶ 4, 5; Cruz Decl. (ROA 149) ¶¶ 4, 5. Each plaintiff states his or her individual settlement agreement "has been lodged with the Court under seal for the Court's review." Sandoval Decl. (ROA 155) ¶ 5; Aguirre Decl. (ROA 151) ¶ 5; Cruz Decl. (ROA 149) ¶ 5. Plaintiffs filed a Notice of Lodgment of Plaintiffs' Individual Settlement Agreements (ROA 157), but the court file does not contain any lodged agreements. In addition, the court declines to review the documents in camera, as all materials filed in support of plaintiffs' motion

		must be part of the court file for this action. If the parties contend the agreements are confidential, the parties should have lodged copies of the agreements conditionally under seal and filed a noticed motion to seal the documents before the June 25, 2026 hearing on this motion; if that remains the parties' position, the parties should promptly do so, as the court will not grant plaintiffs' motion—or make a decision regarding plaintiffs' requests for enhancement payments—until the agreements have been submitted to the court. The motion to seal should explain, <i>inter alia</i>, why plaintiffs' individual settlement agreements should be shielded from, e.g., the aggrieved employees whose interests plaintiffs purport to represent. <u>As to the proposed order and judgment (ROA 147):</u> 2. Counsel information should be removed from the caption page of the proposed order and judgment. 3. The settlement agreement, any amendment(s) thereto, and the notice letter (in English and Spanish) should be attached as exhibits to the proposed order and judgment. The hearing on plaintiffs' motion for approval is continued to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
9	Sheikh, et al. v. Surgical Care Affiliates, LLC 2022-01254790	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$3,450,000 class action and PAGA settlement. The court has the following questions and comments: 1. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply with applicable court rules may result in sanctions and/or an order striking the overlong brief.